

PASSED

CHICKASAW TRIBAL LEGISLATURE

Permanent Resolution Number 12-15

Amendments to Title 8 of the Code of the Chickasaw Nation

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the Office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Election Rules and Regulations need to address issues of filing for office.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature amends Section 8-203 of Title 8 of the Code of the Chickasaw Nation to add parts A. and B., as herein indicated:

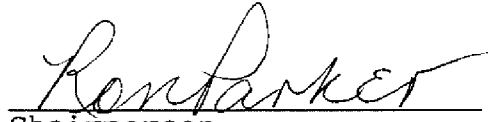
SECTION 8-203 FILING PERIOD.

A. The Declaration of Candidacy form requires an oath wherein the candidate swears or affirms that he is qualified to become a candidate for the office he is seeking and that, if elected, he will be qualified to hold the office. The Candidate's signature must be notarized by a notary public or other person authorized to administer oaths.

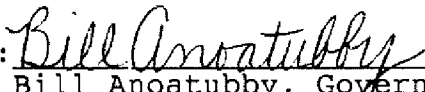
B. The Declaration of Candidacy form must be complete when it is presented to the Chickasaw Nation Election Secretary or other designee of the Election Secretary. When the candidate files the form in person, he may be asked to initial changes on the form to comply with the law. The law does not require that the Declaration of Candidacy be filed in person; however, if someone else files the Declaration of Candidacy, that person cannot authorize changes in the form if such changes need to be made to conform to the law. Further, if a Declaration of Candidacy is mailed, it must be received during the filing period prescribed by law - neither before 8:00 a.m. on the first day of the filing period nor after 4:30 p.m. on the final day of the filing period - or it cannot be accepted.

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Executed in regular session of the Chickasaw Tribal Legislature,
meeting at Ada, Oklahoma, on May 19, 1995, by a vote of 9 ayes,
4 nays, 0 abstentions.


Chairperson
Chickasaw Tribal Legislature


Secretary
Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor
The Chickasaw Nation

Date: 5-22-95

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 12-15
Defining How to File for Elective Office

Explanation:

Adoption of this amendment would specify the filing requirements for candidates for elective office by permitting them to file either in person, by mail, or have someone else file for them. Further, persons filing for office would be required to have their declaration of candidacy notarized on a form designed by and provided by the Election Commission.

Section 8-203 of the Code of the Chickasaw Nation, currently, reads as follows:

SECTION 8-203 FILING PERIOD.

The filing period for tribal elections shall begin the first Monday in June and shall last for the next succeeding four (4) days. Hours of filing on each day shall be between 8:00 a.m. and 4:30 p.m. The declaration of candidacy shall be filed in the office of the Election Secretary at the Nation's headquarters. (TL 4-004, 4/17/87; TL 6-006, 4/7/89; PR 7-04, 2/16/90)

If PR12-15 is adopted, parts A. and B. would be added to the current provisions of Section 8-203 of the Code of the Chickasaw Nation.

Requested By: The Honorable 'Rena Duncan, Legislator

Presented By: The Honorable Mevelyn Kirkpatrick, Chairman
Ad Hoc Committee on Election Rules and Regulations